

**CHAPTER xxx.**

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Leith Harbour and Docks. A.D. 1908.
—
[18th June 1908.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Leith Harbour and Docks Order Confirmation Act 1908. Short title.

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SCHEDULE.

LEITH HARBOUR AND DOCKS.

Provisional Order to authorise the Commissioners for the harbour and docks of Leith to construct a graving dock and other works to alter the procedure for electing Commissioners to vary the method of charging rates &c. to authorise the Commissioners [to borrow money and to define their borrowing powers to amend the Leith Harbour and Docks Acts 1875 1892 and 1899 and for other purposes.

WHEREAS by the Leith Harbour and Docks Act 1875 (herein-after referred to as "the Act of 1875") the Acts then in force relating to the harbour and docks of Leith were amended and consolidated and the constitution of the Commissioners was altered and their undertaking was transferred to and vested in new Commissioners incorporated under that Act by the name of "The Commissioners for the Harbour and Docks of Leith" (herein-after called "the Commissioners"):

And whereas by the Act of 1875 powers were conferred on the Commissioners to construct certain works and to borrow money for the purpose:

And whereas by the Leith Harbour and Docks Act 1892 (herein-after referred to as "the Act of 1892") and by the Leith Harbour and Docks Act 1899 (herein-after referred to as "the Act of 1899") the Commissioners were authorised to construct certain additional works and to borrow money for the purpose and further powers with reference to their undertaking were conferred upon them:

And whereas the Commissioners have executed the works authorised by the Acts of 1875 1892 and 1899 respectively:

And whereas the trade of the Port of Leith and the size of ships and extent of shipping resorting thereto have greatly increased and are still increasing and it is expedient that for the accommodation thereof the Commissioners should be authorised to construct the dry or graving dock herein-after described:

And whereas it is expedient that the provisions of the Acts of 1875 and 1892 with respect to the procedure for electing Commissioners should be amended as in this Order provided: A.D. 1908.

And whereas it is expedient that the Commissioners should be authorised to levy rates and charges for the use of the works by this Order authorised and to vary the rates and charges which the Commissioners are authorised to levy by the Acts of 1875 1892 and 1899:

And whereas under the Edinburgh Corporation Stock Act 1894 (herein-after referred to as "the Act of 1894") the Commissioners were authorised to redeem certain annual payments amounting in all annually to the sum of five thousand six hundred and eighty pounds to the Lord Provost magistrates and council of the city and royal burgh of Edinburgh (herein-after referred to as "the Edinburgh Corporation") and to borrow such sums of money as they might deem necessary for the purpose of such redemption:

And whereas the Commissioners have redeemed the said annual payments by payment to the Edinburgh Corporation of the sum of one hundred and eighty-nine thousand three hundred and thirty-three pounds six shillings and eightpence:

And whereas by the Act of 1899 the Commissioners were authorised to redeem a sum of five hundred pounds annually payable to the provost magistrates and councillors of the burgh of Leith (herein-after referred to as "the Leith Corporation") and to borrow such sums of money as they might deem necessary for the purpose of such redemption:

And whereas the Commissioners have redeemed the said annual payment of five hundred pounds by payment to the Leith Corporation of the sum of eighteen thousand three hundred and thirty-three pounds six shillings and eightpence:

And whereas it is expedient that the borrowing powers of the Commissioners should be defined as at the fifteenth day of May one thousand nine hundred and eight and that their unexercised borrowing powers should be extinguished:

And whereas it is expedient that the borrowing powers of the Commissioners should be consolidated and that the securities for money already borrowed or to be hereafter borrowed under the Acts of 1875 1892 1894 and 1899 or this Order should rank *pari passu* and that the Commissioners should be authorised to

A.D. 1908. — effect such consolidation by the conversion of their existing bonds and mortgages into one series of bonds and mortgages in the manner herein-after provided :

And whereas it is expedient that the provisions of the Acts of 1875 1892 1894 and 1899 relating to sinking funds should be amended and consolidated :

And whereas it is expedient that the Commissioners should be authorised to borrow further moneys to enable them to carry out the works by this Order authorised and for the other purposes of this Order :

And whereas it is expedient that the other powers in this Order mentioned should be conferred on the Commissioners :

And whereas a plan and sections showing the line and levels of the dry or graving dock and other works authorised by this Order and also a book of reference thereto containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Order were duly deposited with the principal sheriff clerk for the county of Midlothian and are herein-after respectively referred to as the deposited plan sections and book of reference :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

Short title.

1. This Order may be cited for all purposes as the Leith Harbour and Docks Order 1908 and this Order and the Acts of 1875 1892 and 1899 may be cited together as the Leith Harbour and Docks Acts 1875 to 1908.

Commence-
ment of
Order.

2. This Order (save as otherwise in this Order expressly provided) shall commence and have effect from the date of the passing of the Act confirming the same.

Order
divided into
Parts.

3. This Order is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—New Works.

Part III.—Procedure for electing Commissioners.

Part IV.—Meetings &c. of Commissioners.

Part V.—Warehousing of Goods.

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Part VI.—Rates.

Part VII.—Financial.

Part VIII.—Miscellaneous.

PART I.

PRELIMINARY.

4. The Lands Clauses Acts are except where expressly varied by this Order incorporated with and form part of this Order and this Order shall be deemed to be a special Act within the meaning of those Acts.

Incorporation of Acts.

5. The Harbours Docks and Piers Clauses Act 1847 excepting the sections thereof with respect to lifeboats with respect to keeping a tide and weather gauge (unless the Commissioners shall be required by the Board of Trade to provide and maintain a lifeboat and tide and weather gauge) with respect to the accounts to be kept of the rates and of the vessels in respect of which they are payable and with respect to the police of the harbour dock and pier and excepting sections 25 and 26 of that Act is except where expressly varied by this Order incorporated with and forms part of this Order.

Partial incorporation of Harbours Docks and Piers Clauses Act.

6. In this Order the several words and expressions to which meanings are assigned by the Harbour Acts and by the Acts incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant thereto:

Interpretation.

And in this Order—

“The Commissioners” means the Commissioners for the harbour and docks of Leith;

“The Act of 1875” means the Leith Harbour and Docks Act 1875;

“The Act of 1892” means the Leith Harbour and Docks Act 1892;

“The Act of 1894” means the Edinburgh Corporation Stock Act 1894;

“The Act of 1899” means the Leith Harbour and Docks Act 1899;

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“ The Harbour Acts ” means the Acts of 1875 1892 and 1899 ;

“ The Harbours Clauses Act ” means the Harbours Docks and Piers Clauses Act 1847 ;

“ The Leith Corporation ” means the provost magistrates and councillors of the burgh of Leith.

PART II.

NEW WORKS.

Description
of works.

7. Subject to the provisions of this Order the Commissioners may make and maintain in the lines and according to the levels shown on the deposited plan and sections the works herein-after described with all proper approaches works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the said plan and described in the deposited book of reference as may be required for that purpose The works herein-before referred to and authorised by this Order are—

A dry or graving dock with an entrance from the Imperial Dock seventy feet in width and thirty-one feet in depth from the level of the coping of the quay wall to the sill of such dry or graving dock the centre line of the said dry or graving dock commencing at a point on the western quay of the Imperial Dock ninety feet or thereabouts measured in a south-westerly direction from the north-west corner of the Imperial Dock and terminating at a point five hundred and seventy-five feet or thereabouts measured in a north-westerly direction from the point of commencement.

All of which works will be situate in or adjoin the burgh of Leith and the parish of Leith.

Works to be
deemed to be
authorised by
Harbour Acts.

8. The works by this Order authorised shall subject to the provisions of this Order be deemed for all purposes including rating to be part of the works authorised by the Harbour Acts.

Period for
acquisition
of lands.

9. The powers of the Commissioners for the compulsory purchase of lands for the purposes of this Order shall cease after the expiration of three years from the passing of the Act confirming this Order.

10. The Commissioners in the execution of the works by this Order authorised may deviate laterally from the lines of such works within the limits of lateral deviation marked on the deposited plan and they may deviate from the levels of the said works as shown on the deposited sections to any extent not exceeding five feet.

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Power to
deviate.

11. If the works by this Order authorised are not completed within eight years from the passing of the Act confirming this Order then on the expiration of that period the powers by this Order granted to the Commissioners for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

Period for
completing
works.

12. Section 52 of the Act of 1875 section 31 of the Act of 1892 and section 8 of the Act of 1899 relating to the provision and erection of plant and landing and other machinery are hereby repealed and in lieu thereof the following provisions shall have effect:—

Commission-
ers to provide
plant &c. and
maintain and
execute
works.

(1) The Commissioners may provide erect and construct upon the lands quays jetties works and premises already vested in them or constructed by them under this Order—

(A) All such bridges rails sheds cranes lifts machinery pontoons graving docks or works plant fittings conveniences and appliances and dredging and other works as they deem requisite or desirable for the accommodation of the trade and shipping;

(B) All works necessary for landing housing slaughtering and otherwise dealing with cattle imported in accordance with the provisions of the Diseases of Animals Acts 1894 and 1896 and the regulations and orders of the Privy Council or Board of Agriculture and Fisheries or other laws regulations and orders relating thereto in force for the time being;

(C) All machinery and appliances for repairing vessels and for shipping and unshipping ballast grain and all other goods and the transmission thereof underground or on the level or overhead to or from warehouses or other premises;

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(2) Subject to the provisions of the Harbour Acts and of this Order the Commissioners may make all reasonable charges for the use of machinery and appliances and labour and services connected with the use of the same;

(3) The Commissioners may also carry on and execute all such works and do all such acts and things as they may from time to time deem necessary or expedient—

(A) For maintaining repairing deepening dredging and cleansing the harbour and docks and for repairing maintaining renewing extending or altering the piers and the quays quay walls jetties and other works thereof and other properties whatsoever vested in the Commissioners as now or hereafter existing;

(B) For maintaining renewing extending enlarging increasing and adding to removing or altering the bridges rails sheds cranes lifts machinery or works plant fittings and other conveniences and appliances and dredging and other works now or hereafter existing at the harbour and docks; and

(C) Generally for managing and conducting the affairs of the whole undertaking vested in them by the Harbour Acts and this Order or thereby authorised; and

(4) The Commissioners may construct and erect upon lands or premises vested in them by the Harbour Acts or this Order or acquired under the Harbour Acts such other harbour works and works and buildings in connexion therewith as they may from time to time deem necessary or expedient for the trade of the port of Leith Provided always that compensation shall be made by the Commissioners to all persons whose lands or premises may be injuriously affected by the exercise of the powers by this section conferred.

Crown
rights.

13. Nothing in this Order affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Commissioners to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments

subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give). A.D. 1908.

14. The Commissioners shall not under the powers of this Order purchase or acquire in any district within the meaning of the Public Health (Scotland) Act 1897 ten or more houses which on the fifteenth day of April last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Secretary for Scotland ten or more houses which were not so occupied on the said fifteenth day of April but have been or shall be subsequently so occupied. Restriction
on taking
houses of
labouring
class.

If the Commissioners acquire or appropriate any house or houses under the powers of this Order in contravention of the foregoing provision they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Secretary for Scotland by action in the Court of Session and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the Court may if they think fit reduce such penalty.

For the purposes of this section the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any such persons who may be residing with them The expression "house" means any house or part of a house occupied as a separate dwelling.

PART III.

PROCEDURE FOR ELECTING COMMISSIONERS.

15. On the fifteenth day of May one thousand nine hundred and nine section 18 (Rules to be observed at elections) of the Act of 1892 is hereby repealed and the following rules shall be Rules to be
observed at
elections and

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electors :—
repeal of sec-
tion 18 of
Act of 1892.

- (1) The returning officer shall preside and regulate the procedure at and conduct the election and his decision upon every question which shall arise thereat shall be final :
- (2) Any elector qualified as a shipowner may nominate for election as a Commissioner to be elected by shipowners any other elector qualified to be elected a Commissioner to be elected by shipowners and such nomination may be seconded by any other elector qualified as a shipowner :
- (3) Any elector qualified as a ratepayer may nominate for election as a Commissioner to be elected by ratepayers any other elector qualified to be elected a Commissioner to be elected by ratepayers and such nomination may be seconded by any other elector qualified as a ratepayer :
- (4) A nominator or seconder shall not be disqualified for so nominating or seconding by reason of his being a Commissioner in office :
- (5) If in either case no more candidates are nominated than the number to be elected the candidate or candidates nominated shall be deemed elected and the returning officer shall sign a declaration of the election of such candidates which shall be conclusive evidence thereof and shall publish the names of the persons so elected in at least one newspaper published in Edinburgh and one newspaper published in Leith respectively but if in either case more candidates are nominated than the number to be elected the returning officer shall order a poll :
- (6) When a poll is required the returning officer shall direct the same to be taken at such place within the burgh of Leith and on such days (not being less than two nor more than six) and during such hours as he may appoint but not less than ten or more than twenty-one clear days (including Sundays) shall intervene between the day of nomination and the first of the days appointed for taking the poll.

16. On the fifteenth day of May one thousand nine hundred and nine section 19 (Rules as to taking the poll) of the Act of 1892 is hereby repealed and the following rules shall thenceforth be observed with respect to taking the poll at every election:—

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Rules as to
taking the
poll and re-
peal of sec-
tion 19 of Act
of 1892.

- (1) The returning officer shall appoint a presiding officer or officers for the election and such number of polling clerks as he may deem sufficient and cause proper polling books and everything else necessary for taking the poll to be provided and such presiding officer or officers shall conduct the taking of votes at the election :
- (2) Each elector qualified as a shipowner or as a ratepayer shall be entitled to give one vote only for a Commissioner or each Commissioner to be elected by shipowners or ratepayers respectively (notwithstanding that the name of such elector may appear more than once in the list of electors qualified as shipowners or more than once in the list of electors qualified as ratepayers) but the same elector qualified both as a shipowner and as a ratepayer shall be entitled to vote once as a shipowner and once as a ratepayer for a Commissioner or for each Commissioner to be elected :
- (3) The votes shall be given either personally or by means of voting papers in the form of Schedule A of this Order or to the like effect and no elector shall be allowed to vote in any other way than personally or by means of such voting papers Each voting paper shall have the number of the elector as appearing in the register of electors printed or written thereon Before a voting paper is issued to an elector as herein-after provided it shall be marked with an official mark either stamped or perforated and a mark shall be placed in the register or any copy thereof used for the purposes of the election against the number of the elector to denote that a voting paper has been issued to him :
- (4) The poll at the polling place shall be opened for personal voting from ten o'clock in the forenoon until four o'clock in the afternoon on the first of the appointed days :

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—

- (5) Not later than the seventh day after the day of nomination the returning officer shall issue simultaneously through the post a voting paper or voting papers as the case may be in the form prescribed to each elector to his address as entered on the register of electors who shall appear from such address to be resident within the United Kingdom. Each voting paper shall bear the name or names or description (as the case may be) and the address of the elector and shall be accompanied by a letter of intimation in the form set forth in Schedule B of this Order or to the like effect the signature to which may be printed and by an envelope addressed to the returning officer and each elector upon receipt of his voting paper if he desires to vote in the election shall either vote personally or insert in the voting paper the name of the candidate or candidates for whom he votes and the place and date of signature and affix his signature thereto in the presence of one witness who shall personally know the voter and who shall attest the fact of such voting paper having been signed by the voter in his presence at the place therein mentioned by signing his name at the foot thereof and adding his designation and place of residence in the form set forth in Schedule A to this Order or to the like effect. Provided that where any firm or body of trustees or corporation or company is the elector such voting paper may be signed on behalf of the elector by one member of such firm or of such body of trustees or by one recognised official of such corporation or company and the expressions "the voter" and "the elector" when used in this section and in the Schedules A and B of this Order shall include the person so signing:
- (6) The voting paper so signed and attested as aforesaid if the elector desires to vote in the election otherwise than personally shall be returned through the post to the returning officer so as to reach him not later than the time named in the said letter of intimation for the return of the voting paper:
- (7) If an elector is by blindness or other physical cause incapacitated from voting by means of a voting paper in the manner prescribed by this Order he may either

vote personally or may record his vote by voting paper by the hand of a justice of the peace if such justice of the peace shall by attestation written upon the voting paper issued to such elector certify and attest the fact of his having been requested and authorised by the elector to sign such voting paper for him and of its having been so signed by him in presence of the elector :

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- (8) An elector who has not received a voting paper or who has inadvertently spoilt his voting paper or who has lost or destroyed his voting paper may on his transmitting to the returning officer a declaration signed by himself before a justice of the peace setting forth the fact of the non-receipt the spoiling loss or destruction of the voting paper require the returning officer to send him a new voting paper in place of the one not received spoilt lost or destroyed The returning officer upon receiving such an application at any time before the day on which the poll begins shall deliver to such elector or transmit to him to the address as appearing on the register of electors a new voting paper Provided that the returning officer when any voting paper is returned to him from the Dead Letter Office in consequence of the address not being in conformity with the address on the register of electors may reissue such voting paper to the address on the register :
- (9) No voting paper containing the names of more candidates than the elector is entitled to vote for at such election shall be counted and no voting paper shall be counted which in the opinion of a presiding officer has not been issued by the returning officer or is wanting in any of the essential conditions required by this Order or which does not reach the returning officer before ten of the clock on the morning of the day on which the poll closes :
- (10) On the days and during the hours directed by the returning officer the voting papers shall be opened and examined by the presiding officer or officers and the voting papers found to be regular shall be counted and put apart until the end of the poll :

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(11) Any candidate or one agent of each candidate authorised by him in writing may be in attendance at the poll and during the casting up of the votes and may inspect any voting paper or challenge any personal vote before the same shall be counted and may so challenge or object to any personal vote or voting paper on one or more of the following grounds:—

(A) That the elector named in the voting paper or voting personally has attempted to vote twice for the same candidate at that election;

(B) That the person giving a vote by the voting paper or voting personally is not qualified to vote;

(C) That the voting paper is forged or falsified;

(D) That the voting paper is wanting in any of the essential conditions required by this Order;

and a presiding officer may reject or receive any vote or voting papers and his decision on all questions arising in connexion therewith shall be final:

(12) The presiding officer or officers shall cause to be noted in the polling books which shall contain a copy of the list of electors the candidate or candidates for whom each elector votes:

(13) At the close of the poll the presiding officer or officers shall deliver the polling books to the returning officer who shall cast up the votes and declare the total number given for each candidate. The candidate or candidates having the largest number of votes shall be deemed to be elected and in any case of equality in votes the returning officer shall determine by lot which of the candidates shall be declared elected and the returning officer shall sign a declaration of such election which shall be conclusive evidence thereof and shall publish the names of the persons elected in one newspaper published in Edinburgh and one newspaper published in Leith.

Penalty for
false state-
ments &c.
at elections.

17. On the fifteenth day of May one thousand nine hundred and nine section 20 (Penalty on false statements and personation of electors) of the Act of 1892 is hereby repealed and the

following provisions shall thenceforth have effect (that is to say) :— A.D. 1908.

Any person wilfully making a false statement in any notice to the returning officer in pursuance of the provisions of the Act of 1892 or of this Order and any person falsely or fraudulently signing any voting paper in the name of or personating or falsely assuming to act in the name of any other person either as an elector or as a voter or as a witness and any person signing certifying or attesting or transmitting as genuine any false or falsified voting paper knowing the same to be false or falsified or with fraudulent intent altering defacing destroying withholding or abstracting any voting paper shall for every such offence be liable in a penalty not exceeding twenty pounds which the Commissioners may sue for and recover by ordinary action at law.

18. On and from the fifteenth day of May one thousand nine hundred and eight—

(1) Section 6 (Qualification of shipowners and ratepayers) and section 7 (Names &c. of ratepayers to be furnished) of the Act of 1892 shall be read and have effect as if the words "fifteenth day of May" were substituted for the words "first day of September" where those words occur in those sections ;

(2) Section 8 (Register of electors to be kept) of the Act of 1892 shall be read and have effect as if the words "fifteenth day of May." were substituted for the words "first day of September" and as if the words "fifteenth day of July" were substituted for the words "first day of October" ;

(3) Section 11 (Returning officer for and expenses at elections) of the Act of 1892 shall be read and have effect as if the words "and pending such appointment any
" deputy or substitute appointed under the hand of
" the returning officer and whose appointment shall
" have been intimated in writing to the Commissioners
" shall perform the duties of returning officer" were inserted after the word "place" in that section ;

(4) Section 12 (List of electors to be made up and revised) of the Act of 1892 shall be read and have effect as

Amendment
of sections 6
7 8 11 12
13 14 and 17
of Act of
1892 as to
elections.

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if the words "fifteenth day of July" were substituted for the words "first day of October" and as if the words "twentieth day of September" were substituted for the words "fourteenth day of October" where those words occur in that section;

(5) Section 13 (Revised lists of electors to be published) of the Act of 1892 shall be read and have effect as if the words "third day of October" were substituted for the words "twentieth day of October" in that section;

(6) Section 14 (Shipowner or ratepayer may appeal to sheriff) of the Act of 1892 shall be read and have effect as if the words "eighth day of October" were substituted for the words "twenty-fifth day of October" in that section; and

(7) Section 17 (Time and place of election) of the Act of 1892 shall be read and have effect as if the words "fifteenth day of October" were substituted for the words "first day of November" in that section.

Quorum of
meeting of
elected Com-
missioners
for filling
occasional
vacancies.

19. At any meeting of the remaining Commissioners elected by the electors held in pursuance of section 21 (Filling up of occasional vacancies) of the Act of 1892 a majority shall form a quorum and each Commissioner attending such meeting shall have one vote only.

PART IV.

MEETINGS &C. OF COMMISSIONERS.

Meetings of
Commis-
sioners.

20. Section 33 (Meetings of Commissioners) of the Act of 1875 shall be read and construed as if the words "except the month of August" were inserted therein immediately after the word "month" wherever it occurs in that section.

Chairman of
meetings of
Commis-
sioners.

21. Section 34 (Chairman of meetings of Commissioners) of the Act of 1875 is hereby repealed and the following provisions shall have effect in lieu thereof:—

(1) The Commissioners shall choose one of their number to be their chairman to preside at every meeting of the Commissioners from the date of his election as

chairman until the last meeting of the Commissioners preceding the annual election of Commissioners in any year or for such shorter period as the Commissioners may fix and in the absence of the chairman from any meeting of the Commissioners one of the Commissioners present shall be chosen by such meeting to be chairman thereof and shall as such preside thereat: A.D. 1908.

- (2) In case of an equality of votes on a division at any meeting of the Commissioners the chairman thereof shall in addition to his own vote have a second or casting vote.

22. Section 37 (Power to appoint committees) of the Act of 1875 is hereby repealed and the following provisions shall have effect in lieu thereof:— Appoint-
ment and
quorum of
committees.

- (1) The Commissioners may appoint committees of their number and conveners of such committees for carrying into effect any of the provisions of the Harbour Acts and this Order and for discharging any duties incident thereto and may confer on them such powers and give them such instructions or directions as shall appear to the Commissioners expedient:

- (2) Five members of any such committee or if there be less than nine members a majority of the members of such committee shall be a quorum.

PART V.

WAREHOUSING OF GOODS.

23. Section 41 (Commissioners not to be warehouse-keepers) of the Act of 1892 is hereby repealed. Repeal of sec-
tion 41 of Act
of 1892.

24. The Commissioners may set apart and use any of their sheds yards or buildings and may provide and erect sheds yards or buildings at the port of Leith for the purpose of warehousing goods and fit up the same with all necessary appliances and plant including refrigerating machinery and appliances and may as warehouse-keepers render such services as are usually rendered by such persons on payment by the owners of the goods warehoused or the persons in charge of such goods of such reasonable charges as shall be fixed by the Commissioners or on such special Commission-
ers may act
as ware-
house-
keepers.

A.D. 1908. terms and conditions as may be prescribed by the Commissioners
Provided always that the Commissioners shall not within one hundred feet of the quay walls of the Victoria Albert Edinburgh or Imperial Docks or within fifty feet of the quay walls of the West Old Dock or East Old Dock use for the purpose of warehousing goods any existing shed yard or building or provide or erect any new shed yard or building for such purpose.

Commissioners' liability and lien on goods.

25. The Commissioners shall have no responsibility for or in regard to the safety of any goods deposited in their sheds yards buildings quays or other premises except goods warehoused by the Commissioners in any shed yard or building specifically set apart by the Commissioners for the purpose of so warehousing (in this Part of this Order referred to as "warehouse") and no goods except goods so warehoused shall be deemed to be in their custody so as to be attachable by arrestment or otherwise Provided always that the Commissioners shall have a lien over all goods deposited in premises belonging to the Commissioners whether for the purpose of warehousing or otherwise for all rents rates and charges payable to them for or in respect of such goods in priority to any claim or lien for freight or other claims or liens of the owner or master of the vessel discharging such goods or any other person interested in such goods or in the freight of the same or entitled to or claiming the benefit of any claim or lien to which such goods were subject while on board such vessel and before the warehousing thereof.

Commissioners may issue certificates of warehoused goods.

26. The Commissioners may if they think fit at the request of any person warehousing any goods at or in a warehouse of the Commissioners or entitled to any goods so warehoused issue and deliver to him a certificate or warrant of such goods having been so warehoused on payment of such reasonable charges for each certificate or warrant as the Commissioners think fit.

Certificates &c. may be signed by officers.

27. All certificates and other documents relating to goods warehoused at or in a warehouse of the Commissioners if signed and issued by any officer duly authorised by them in that behalf shall be effectual in law and binding on the Commissioners and on all other parties interested without any other signature and without any seal.

As to payment of rates on warehoused goods.

28. The owner or person having the charge of any goods warehoused at or in a warehouse of the Commissioners shall before the removal of such goods from any warehouse of the Commissioners and at such date or dates as shall be fixed by the

Commissioners pay such rates and charges as shall be then due and payable on such goods and in case such owner or person shall fail or neglect to pay such rates and charges the Commissioners or such person as shall be appointed by them shall have the same powers for recovery thereof as are conferred upon them for the recovery of rates on goods by the Harbours Clauses Act. A.D. 1908.

29. Nothing in this Part of this Order shall be deemed to exempt lands or premises within the burgh of Leith used by the Commissioners as a warehouse under this Order from rates and assessments but any lands or premises so used shall for the purposes of this Order be liable to the same rates and assessments as any lands and premises now let by the Commissioners as a warehouse. As to assessment of warehouses.

PART VI.

RATES.

30. The Commissioners may charge for the use of the dry or graving dock by this Order authorised any rates not exceeding twice the amount of the rates authorised by Schedule D of the Act of 1892. Rates for new graving dock.

31. Section 58 (Vessels not to remain over six months in wet docks) of the Act of 1875 and Article Fifth of Schedule C of the Act of 1892 and so much of section 30 (Amendments of Acts of 1875 and 1892) of the Act of 1899 as amends the said section 58 are hereby repealed and the following provisions shall have effect in lieu thereof:— Vessels laying up.

(1) (A) No vessel other than the vessels mentioned in subsection (2) of this section shall enter the harbour and docks for the purpose of laying up or shall remain therein for any purpose for more than one month at any one time unless with the consent of the Commissioners in writing:

(B) If any vessel other than the vessels mentioned in subsection (2) of this section remains in the harbour and docks beyond one month the Commissioners may demand and take such reasonable rates for such vessel remaining after the expiry of the said one month as they shall fix and may also impose such other reasonable terms and conditions as they think fit for such vessel laying up:

A.D. 1908.

(2) (A) Any vessel entering which has paid in the aggregate not less than one shilling and eightpence per ton during the six months immediately preceding the date on which such vessel enters the harbour and docks may enter the harbour and docks for the purpose of laying up and may remain therein for a period of not exceeding one month from such date:

(B) If any such vessel lays up or remains in the harbour and docks beyond such month the Commissioners may charge a rate not exceeding one penny per ton for every week or part of a week such vessel is allowed by the Commissioners to lay up or remain in the harbour and docks beyond such month:

(3) If any vessel shall remain in the harbour and docks after the expiration of such month without having paid the rates in this section mentioned or shall infringe any of the terms and conditions imposed by the Commissioners the Commissioners may by resolution order the removal of such vessel or they may themselves remove and may moor or lay up such vessel at any place outside the docks or outside the harbour and docks at the risk and expense of the owner thereof.

Repeal of
proviso to
section 58 of
Act of 1892
as to regular
traders.

32. The proviso to section 58 (Commissioners to levy rates on goods and shipping) and Article Eleventh of Schedule C of the Act of 1892 so far as that article relates to steam vessels being regular traders to the port are hereby repealed and the following provisions shall have effect in lieu thereof:—

Notwithstanding anything contained in the provisions of the Harbours Clauses Act with respect to the payment collection and recovery of rates or in Articles Eleventh (so far as not repealed by this section) and Twelfth of Schedule C of the Act of 1892 the Commissioners may agree with the owner or agent of any vessel as to the mode in which and the time at which the rates and charges exigible in respect of such vessel shall be paid and the Commissioners may in or in connexion with such agreement require such guarantees or other security for payment of such rates and charges as they may think fit.

33. Section 65 (Goods paying rates inward free outward) of the Act of 1892 and that part of Schedule A to the Act of 1892 from and including the words "All goods shipped overside from one vessel" to the end of the said Schedule A are hereby repealed and the following provisions shall have effect in lieu thereof:—

A.D. 1908.
Goods shipped
overside or
landed for
transship-
ment to pay
half rates.

The Commissioners shall charge half rates inward only on all goods which are either shipped overside from one vessel to another or are landed on the quays to facilitate such transshipment and are reshipped within five days after being so landed (excluding Sundays) or within such longer period not being more than ten days as the Commissioners shall fix if such goods shall not between landing and reshipment have been removed from the quays or works of the Commissioners or other premises in which the Commissioners permit such goods to be placed and no rates outwards shall be charged on such goods. Provided always that in order to entitle such goods to the privileges conferred by this section evidence in such form as may be required by the Commissioners of compliance with the conditions requisite to entitle them to such privileges shall be produced to the collector at the time of transshipment or reshipment by the party claiming to benefit.

34. Article Seventh of Schedule C of the Act of 1892 is hereby repealed and the following provisions shall have effect in lieu thereof:—

Article 7
Schedule C
of Act of
1892
amended.

When a vessel shall have paid the full rates exigible for eight inward voyages from foreign ports between Whitsunday in any one year and Whitsunday in the following year such vessel shall for any further voyage during that period pay twopence per ton per voyage.

35. Article Fourth of Schedule C to the Act of 1892 being regulations applicable to Schedules A and B of the Act of 1892 and so much of section 30 (Amendment of Acts of 1875 and 1892) of the Act of 1899 as amends the said Article Fourth are hereby repealed and in lieu thereof the following provision shall have effect:—

Rules for
vessels enter-
ing for safety
&c. and
amendment
of Article 4
Schedule C
of Act of
1892.

Any vessel entering the harbour and docks light or in ballast or for safety convenience or repairs only shall be charged half rates provided that such half rates shall amount to

A.D. 1908.

not less than twopence per register ton but if such vessel shall land or take on board goods or passengers or shall remain in the harbour and docks for more than fourteen days such vessel shall be charged the full rates payable under Branch I. of Schedule B of the Act of 1892 notwithstanding anything contained in Schedule C of that Act and vessels arriving light or in ballast for repairs and using a dry dock and also loading coal and sailing within fourteen days shall be charged half rates payable as if arriving for repairs only provided such half rates are not less than the rate for vessels arriving to load coal prescribed by Article Sixteenth of Schedule C of the Act of 1892.

Tonnage
rates and
other rates
chargeable
under Har-
bour Acts or
by agree-
ment.

36. The Commissioners may if they think fit demand and take the rates rents and charges authorised to be demanded and taken by the Harbour Acts and this Order subject to the modification following (that is to say):—

In lieu of tonnage rates on any vessel the Commissioners may by agreement with the master or owner or person in charge of such vessel demand and take such payment as may be agreed upon between the Commissioners and the said master or owner or person in charge Provided always that the Commissioners shall not give any preference between vessels from the same port under similar conditions and in like circumstances Provided also that no agreement shall be made under this section in contravention of section 30 of the Harbours Clauses Act as modified by section 59 (Commissioners may vary rates) of the Act of 1892.

Minimum
rates.

37. A minimum charge of two shillings shall be levied on a vessel where the tonnage rates on such vessel chargeable under Schedule B Branch I. of the Act of 1892 shall amount to less than two shillings.

PART VII.

FINANCIAL.

Power to
Commission-
ers to borrow
money.

38. The Commissioners may borrow—

(A) In addition to the sum of eight hundred thousand pounds mentioned in the section of this Order of which the marginal note is "Definition of former borrowing

powers" any sum or sums of money not exceeding in the whole one hundred and forty thousand pounds to be applied in the execution of the works authorised by this Order :

A.D. 1908.

- (B) In addition to the sum of one hundred and forty thousand pounds which the Commissioners may borrow under the foregoing provisions of this section any sum or sums of money not exceeding in the whole fifty thousand pounds being part of the moneys temporarily appropriated out of revenue to the repayment of mortgage debt in excess of sinking fund requirements during the three years ending the fifteenth day of May one thousand nine hundred and eight and the Commissioners may repay to revenue any sum so borrowed ;

but with the application of which the lenders of the money so borrowed shall have no responsibility or concern and the Commissioners may make and grant bonds and mortgages of the undertaking of the harbour and docks and of the rates rents and feu duties and other revenues arising under the Harbour Acts and this Order and from the harbour and docks and works and property thereof in security for the repayment of the money to be so borrowed and interest thereon.

39. And whereas the Commissioners by repayment of the debt due to the Public Works Loan Commissioners and by the redemption of the annuities payable to the Edinburgh Corporation and the Leith Corporation in pursuance of the powers contained in the Acts of 1875 1892 1894 and 1899 and by the operation of the provisions for that purpose contained in section 74 (Priorities of other bonds and mortgages) of the Act of 1892 have secured the pari passu ranking of the securities for all debt now remaining due by them And whereas by the section of this Order the marginal note of which is " Definition of former borrowing powers " the authorised unexercised borrowing powers of the Commissioners have been extinguished And whereas the moneys by this Order authorised to be borrowed (other than the sum of fifty thousand pounds to be appropriated to the repayment to revenue of moneys temporarily applied from revenue in payment of mortgage debt in excess of sinking fund requirements) can only be applied in the construction and equipment of the graving dock

All securities
to rank pari
passu.

A.D. 1908. by this Order authorised and other works to which capital is properly applicable under this Order And whereas the moneys to be borrowed under the powers of this Order will have no preferable security upon the said graving dock and other works And whereas in addition to the sum of five hundred thousand pounds borrowed under the Act of 1892 the Commissioners had at the fifteenth day of May one thousand nine hundred and seven in the construction and equipment of the works authorised by the Act of 1892 expended out of revenue in pursuance of the provisions of the Act of 1892 sums amounting to three hundred and nine thousand eight hundred and twenty-nine pounds nineteen shillings and threepence And whereas for these reasons the security for the existing debt of the Commissioners has already been greatly increased and it is expedient that the securities for all money borrowed by the Commissioners under the Acts of 1875 1892 1894 1899 and this Order should rank *pari passu* Therefore be it enacted that all mortgages or securities granted for parts of the said sums of one hundred and forty thousand pounds and fifty thousand pounds authorised to be borrowed under the section of this Order of which the marginal note is "Power to Commissioners to borrow money" and the amounts due under the same for the time being shall rank *pari passu* without any preference among such mortgages by reason of priority in the dates thereof or the dates of advancing the moneys for which the same shall have been granted and all mortgages or securities for money borrowed or to be borrowed under the Acts of 1875 1892 1894 1899 or this Order shall rank *pari passu* without any priority or preference the one over the other.

Definition
of former
borrowing
powers.

40. Notwithstanding anything contained in the Acts of 1875 1892 1894 and 1899 the borrowing powers of the Commissioners under those Acts as at Whitsunday one thousand nine hundred and eight shall be deemed to be the sum of eight hundred thousand pounds being the sum of seven hundred and seventy-eight thousand eight hundred and ninety-eight pounds six shillings and eightpence borrowed by the Commissioners on bond and mortgage as at the fifteenth day of May one thousand nine hundred and seven together with the additional sums so borrowed or agreed to be borrowed at or before the fifteenth day of May one thousand nine hundred and eight and any borrowing powers of the Commissioners under the said Acts in excess of the said sum of eight hundred thousand pounds are hereby extinguished.

41. On the sixteenth day of May one thousand nine hundred and eight the total amount of the moneys authorised by the Acts of 1875 1892 1894 1899 and this Order to be borrowed by the Commissioners shall be deemed to be one consolidated debt and all bonds and mortgages for such debt thereafter to be granted by the Commissioners shall be granted without regard to the particular Act of Parliament in virtue of which the sum due under such bond and mortgage was originally authorised to be borrowed and it shall not be necessary for the clerk to the Commissioners to keep separate registers for each series of bonds and mortgages and the transfers thereof except as regards bonds and mortgages then already granted so long as the same shall not be repaid and discharged but all bonds and mortgages thereafter to be granted under the said Acts and Order or transfers thereof shall be registered in a separate register of bonds and mortgages and transfers thereof without regard to the particular Act of Parliament or Order in virtue of which the sum in any such bond and mortgage may originally have been authorised to be borrowed.

A.D. 1908.

Consolidation of debt.

42. In exercise of the borrowing powers defined in the section of this Order of which the marginal note is "Definition of former borrowing powers" and of the borrowing powers conferred by this Order the Commissioners may borrow by any one or more of the means of borrowing money authorised by the Harbour Acts or this Order and may grant bonds and mortgages to be sealed and signed by three of the Commissioners in the form set forth in Schedule C to this Order or as near thereto as circumstances admit and the provisions of the said Acts as amended by this Order with reference to the borrowing and repayment of money shall apply to the moneys by this Order authorised to be borrowed.

Form of mortgage for exercise of borrowing powers.

43. The sum of one hundred and forty thousand pounds authorised to be borrowed under the authority of the section of this Order of which the marginal note is "Power to Commissioners to borrow money" shall be applied in the execution of the works by this Order authorised and in providing the same with bridges rails sheds cranes lifts machinery or works plant fittings and conveniences and in dredging and other works and in appliances for repairing vessels and for shipping and unshipping goods and the transmission thereof and other conveniences in connexion with the said works and others and to any other works to which capital is properly applicable under this Order Provided always that the Commissioners may apply towards the cost of such works or any

Application of borrowed money.

A.D. 1908. portion thereof the whole or any part of the moneys in their hands and the revenue to be received during the execution of the said works if any remaining after applying such revenue to the purposes to which such revenue is preferably applicable under the provisions of this Order.

As to loans
by Public
Works Loan
Commis-
sioners.

44. Nothing in this Order shall operate to empower the Commissioners to borrow any loan from the Public Works Loan Commissioners Provided that if the Public Works Loan Commissioners advance any loan to the Commissioners under the Harbours and Passing Tolls &c. Act 1861 and the Acts amending the same—

(1) That loan and the security therefor shall not have priority over any loan previously borrowed under this Order or the security therefor except so far as the creditors consent to such priority under the Public Works Loans Act 1875; and

(2) The amount which the Commissioners are authorised by this Order to borrow shall be diminished by the amount of any loan so borrowed under the Harbours and Passing Tolls &c. Act 1861 and the Acts amending the same.

Commis-
sioners may
repay money
borrowed
before due
date.

45. The Commissioners may by agreement repay the principal sum secured by any bond and mortgage granted by them at any earlier date than the date for repayment specified in such bond and mortgage.

Power to
renew post-
pone &c.
mortgages.

46. All bonds and mortgages now existing or hereafter to be issued by the Commissioners may be renewed postponed or extended for such periods on such terms and at such rates of interest as the Commissioners may from time to time think fit and agree with the lenders and in the event of any of them being paid off and discharged the sum so paid off and discharged may be re-borrowed and new bonds and mortgages may be granted for the moneys so re-borrowed on such terms as to time of repayment and rate of interest as the Commissioners may fix and such bonds and mortgages may be again renewed or the moneys due thereby may be paid off and re-borrowed and new bonds and mortgages granted for the same as aforesaid and so from time to time but without prejudice to the provisions of the Acts of 1875 1892 1894 1899 or this Order as to the application of the sinking funds provided by those Acts or this Order Provided that the Commissioners shall not have power to re-borrow any money paid off by instalments or by means of a sinking fund

Provided also that any moneys re-borrowed shall be deemed to form the same loan as the money for the repayment of which the borrowing has been made and shall be repaid within the prescribed period. A.D. 1908.

47. Sections 85 and 86 of the Act of 1875 sections 70 and 77 of the Act of 1892 section 62 of the Act of 1894 and section 17 of the Act of 1899 in so far as relating to provision for sinking fund and annual return to Board of Trade with respect to sinking fund are hereby repealed. Repeal of provisions relating to sinking fund of Acts of 1875 1892 1894 and 1899.

48. Where the Commissioners shall have borrowed or shall borrow money on bond and mortgage or by the creation of funded debt under the Acts of 1875 1892 1894 1899 or this Order and by any such bonds and mortgages shall have granted or shall grant an obligation for repayment of the principal sums therein contained otherwise than by fixed periodical instalments of principal and interest as provided by section 69 of the Act of 1892 they shall pay off the money so borrowed within the respective periods following (that is to say):— Provision for sinking fund.

(A) As to money already borrowed at the date of the passing of the Act confirming this Order within sixty years from the fifteenth day of May one thousand nine hundred and eight:

(B) As to money borrowed for the purposes of this Order within sixty years from the date or dates of borrowing the same Provided that when revenues are applied for purposes to which capital is properly applicable and are subsequently replaced by borrowed money the money so borrowed shall be deemed to have been borrowed on the date when such revenue was so applied.

For the purpose of paying off the money so borrowed the Commissioners shall annually set apart out of the revenues of the harbour and docks a sum equal to one-sixtieth part of the total amount borrowed as sinking fund to be applied to the repayment of the whole of the moneys so borrowed or to be borrowed and shall apply the said sinking fund in repayment of the moneys secured by such bonds and mortgages granted under any of the said Acts and this Order as the same shall fall due or at any such time as may be agreed with the holders of such bonds and mortgages and the said sinking fund may be applied in repayment of bonds and mortgages granted under any

A.D. 1908. of the said Acts and Order indifferently Provided that if at any time the Commissioners have paid off or shall pay off moneys secured by any such bonds and mortgages to a greater extent than the amount for the time being available for that purpose from the said sinking fund they may from time to time re-borrow the amount so paid off in excess thereof Provided further that in the event of the Commissioners creating funded debt such funded debt shall be reckoned part of the borrowed moneys to which the said sinking fund applies.

Annual re-
turn to Board
of Trade with
respect to
sinking fund.

49. The clerk to the Commissioners shall within twenty-one days after the expiration of each year during which any sum is required to be set apart for a sinking fund under this Order or paid by instalment transmit to the Board of Trade a return in such form as may be prescribed by that Board and verified by statutory declaration if so required by them showing the amount which has been paid as an instalment or invested for the purpose of such sinking fund during the year preceding the making of such return and the description of the securities upon which the same has been invested and also showing the purposes to which any portion of the moneys invested for the sinking fund and the interest thereof has been applied during the same period and the total amount remaining invested at the end of the year and in the event of any default in making such return the clerk shall be liable to a penalty not exceeding twenty pounds If it appear to the Board of Trade by such return or otherwise that the Commissioners have failed to pay any instalment or set apart the sum required by this Order for the sinking fund or have applied any portion of the moneys set apart for that fund or any interest thereof to any purposes other than those authorised by this Order the Board of Trade may by order direct that a sum not exceeding double the amount in respect of which such default shall have been made shall be set apart and invested as part of the sinking fund and such order shall be enforceable by decree of either Division of the Inner House of the Court of Session in Scotland pronounced in a summary application presented for that purpose.

Application
of revenues
&c. and re-
peal of sec-
tion 80 of
Act of 1892.

50. Section 80 (Application of revenues &c.) of the Act of 1892 is hereby repealed and the following provision shall have effect in lieu thereof:—

The Commissioners shall apply the rates rents feu-duties and other annual revenue and moneys levied and received

by them in virtue of the Harbour Acts and this Order in A.D. 1908.
the manner and order following (that is to say):—

(1) In payment of the expenditure on the maintenance repair deepening dredging and cleansing of and at the harbour and docks as the same now exist and may hereafter be extended under the authority of this Order or otherwise the expenses connected with the maintenance repair and renewal of works and the maintenance and extension of and other works connected with the sheds plant and other conveniences and of insurance of works and properties against fire and of insuring the Commissioners against claims for damages by employees or third parties in respect of accidents at or connected with the undertaking and the payment of such claims as may not be insured against in payment of public rates and taxes which may be legally exigible from the Commissioners the expense of borrowing moneys the expense of officers servants and others and all other expenses of and incident to inspecting and conducting the affairs of the undertaking:

(2) In payment of the interest on the principal sums borrowed by the Commissioners whether on bond or mortgage or otherwise and in providing the sinking funds required by the Acts of 1875 1892 1894 1899 or this Order and in repayment of the principal sums borrowed as aforesaid as by the said Acts or this Order required:

(3) In or towards the expense of executing further improvements on and additions to or extensions of the harbour and docks and works connected therewith or in or towards the repayment of the principal sums borrowed by the Commissioners whether on bond or mortgage or otherwise.

PART VIII.

MISCELLANEOUS.

51. Section 69 (Commissioners may license harbour pilots) of the Act of 1875 is hereby repealed and the following provisions shall have effect in lieu thereof:—

Commis-
sioners may
license har-
bour pilots.

(1) The Commissioners may admit and license as pilots for the harbour and docks according to the practice in use

A.D. 1908.

and subject to the statutes relating to pilotage in force for the time being in so far as they extend to or include pilotage at the harbour and docks any person who has received a certificate under the hand of the secretary to the Trinity House of Leith that he is qualified for the duties of a pilot and who satisfies the Commissioners that he is qualified as a pilot for the harbour and docks and that he is of sober habits and good moral character :

(2) The Commissioners may make a classification of pilots for the harbour and docks whereby according to their respective qualifications applicants may be admitted and licensed as pilots for all vessels or only for such vessels as do not have a register tonnage exceeding the register tonnage specified in the licence granted by the Commissioners :

(3) The Commissioners may at any time suspend any pilot from acting or withdraw or cancel the licence held by him when they see fit :

(4) No person (other than a person who is licensed as a pilot by the Commissioners) shall board a vessel for the purpose of piloting or shall pilot such vessel and no shipmaster requiring a pilot shall employ or allow any such person to act as a pilot in navigating or assisting to navigate his vessel :

(5) The Commissioners may prescribe (A) the fees or rates for pilotage according to such classification as the Commissioners may make in pursuance of subsection (2) of this section (B) the manner of levying collecting and paying the same (C) the fees to be exigible for the licences and (D) other matters relating to pilotage at the harbour and docks :

(6) Licences granted by the Commissioners and in force at the passing of the Act confirming this Order shall until withdrawn or cancelled by the Commissioners continue in force in the same manner as if they had been granted under the provisions of this section :

(7) Any shipmaster employing or allowing any person to act as a pilot or any person acting as a pilot or any person asking employment as a pilot in contravention of this section shall be liable to a penalty not exceeding ten pounds.

52. Section 96 (Commissioners may grant retiring allowances) of the Act of 1875 is hereby repealed and the following provisions shall have effect in lieu thereof:—

A.D. 1908.
Com-
mis-
sioners may
grant retiring
allowances.

(1) The Commissioners may grant and pay to any of their officers or servants who shall have been in the service of the Commissioners for at least five years and who shall have become unfit for the efficient discharge of his duty or the exercise of his employment a retiring allowance by way of gratuity not exceeding the amount of one year's salary or wages of such officer or servant at the time of his retiring or by way of annuity or pension an annual retiring allowance amounting to not more than one-sixtieth part of the average amount of the salary or wages of such officer or servant for the five years immediately preceding the date of his retiring for each year of his service such annual retiring allowance being either for the remainder of his life or for some less period or during the pleasure of the Commissioners or on such other terms and conditions as they shall in the circumstances of each case think proper:

(2) If any such officer or servant whose time before his retiring was devoted exclusively to the service of the Commissioners shall after such retiring engage in other remunerative employment the Commissioners may withdraw or restrict the amount of the retiring allowance granted to him either temporarily or permanently as they shall think fit:

(3) Nothing in this section contained shall prejudice or affect any retiring allowance granted by the Commissioners before the passing of the Act confirming this Order.

53. The Commissioners may raise and remove or if necessary destroy and take away any wrecks of vessels or sunken vessels or other obstruction in the harbour and docks and the expense of removing any such wrecks or sunken vessels or obstruction shall be repaid by the master or owner of the same and the Commissioners may detain such wreck or vessel or obstruction in security of such expense and on non-payment of such expense on demand may subject to such notice being given of the intended sale as is prescribed by the first proviso to section 530 of the

Power to
remove
wrecks.

A.D. 1908. Merchant Shipping Act 1894 sell the same and out of the proceeds of such sale may pay the expense incurred in raising removing or destroying or taking away such wreck or vessel or obstruction and the charges of detention and sale rendering the overplus if any to the person entitled to the same and if from such proceeds a sufficient sum to pay such expense shall not be obtained the deficiency shall be recoverable from the owner of such wreck or vessel or obstruction in the same manner as damages or expenses are by the Harbours Clauses Act authorised to be recovered.

For the purpose of giving effect to and in furtherance of the powers conferred on the Commissioners and their harbour-master by sections 56 and 57 of the Harbours Clauses Act and by the Merchant Shipping Act 1894 and this Order the words "expense" and "expenses and charges" in those sections and that Act respectively shall include all expenses incurred by the Commissioners in lighting watching detaining advertising marking buoying raising destroying removing breaking up taking away or selling any wreck vessel cargo goods obstruction or floating timber sunk stranded or abandoned within the harbour and docks or otherwise for any purpose in respect of the same and also all expenses incurred by the Commissioners or their harbour-master under section 57 of the Harbours Clauses Act and section 530 of the Merchant Shipping Act 1894 and the word "owner" shall include the owner of the wreck vessel cargo goods obstruction or floating timber at the time when the same shall first impede the navigation of the said harbour and docks and also the owner of the same at any time thereafter.

Power to
make addi-
tional bye-
laws for pre-
venting fires.

54. In addition to the byelaws which the Commissioners may make under the Harbour Acts and the Harbours Clauses Act the Commissioners may make alter or repeal byelaws for regulating restricting or prohibiting (subject to such conditions as may be deemed reasonable and be authorised by the confirming authority) all persons from carrying on their persons or in any part of their clothing or otherwise on or in any piers constructed with timber and any sheds buildings yards or other inclosed places at the harbour and docks or any parts thereof matches or other articles or apparatus capable of being used for producing combustion or which might cause fire and the Commissioners may impose and recover penalties for the breach of any such byelaws Provided always that the penalty shall not exceed twenty pounds.

The provisions as to byelaws of the Harbours Clauses Act as amended by section 71 (Additional powers as to byelaws) of the Act of 1875 shall apply to any byelaws made or altered by the Commissioners in pursuance of the provisions of this section.

A.D. 1908.

55. Subject to the provisions of section 56 (Commissioners may let dry docks &c.) and section 60 (Commissioners may grant special right to berthage) of the Act of 1875 section 39 (Reserving the surface of quays) and section 40 (Power to let warehouses) of the Act of 1892 and section 5 (Restricting width of east quay of Edinburgh Dock) of the Act of 1899 (except the first and second provisos to the said section 5 which are hereby repealed) the Commissioners may let or lease for any purpose and for any period not exceeding ninety-nine years on such terms and conditions as they may think fit any lands buildings erections works and any other property belonging to them. Provided that no resolution of the Commissioners to let or lease for a period exceeding nineteen years any such lands buildings erections works or other property shall take effect until such resolution has been passed at a stated general meeting of the Commissioners and confirmed by a subsequent stated general meeting or a special meeting of the Commissioners called for the purpose not sooner than eight days thereafter.

Leasing of
land.

56. Nothing in this Order contained shall be deemed to exempt the harbour and docks or the Commissioners from the provisions of any of the Merchant Shipping Acts or of any general Act relating to harbours or docks or dues on shipping or on goods carried in ships now in force or which shall be passed during the present or any future session of Parliament or from any future revision or alteration under authority of Parliament of the rates authorised by this Order.

Nothing to
exempt har-
bour and
docks from
provisions of
Merchant
Shipping
Acts.

57. All costs charges and expenses of and incident to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Commissioners out of the revenues of their undertaking.

Expenses of
Order.

A.D. 1908.

THE SCHEDULES referred to in the foregoing Order.

SCHEDULE A.

(Referred to in the section of this Order of which the marginal note is
"Rules as to taking the poll and repeal of section 19 of Act of 1892.")

ELECTION OF COMMISSIONERS FOR THE HARBOUR AND DOCKS OF LEITH.

YEAR 19 .

VOTING PAPER FOR THE ELECTION BY SHIPOWNERS (RATEPAYERS).

No. (*number of elector as on the register*).

I hereby vote for the following candidate (*or candidates*) at this
election

Signed by me the elector whose name (*or signed by me a member
of the firm or body of trustees or the recognised official of the
corporation or company whose names or description*) and address are
endorsed hereon at

this day of nineteen hundred and .

(Signed) A. B. Voter.

Signed by the above-mentioned voter who is personally known to
me in my presence upon the date above mentioned.

(Signed) C. D.

(*Add designation and place of residence.*)

SCHEDULE B.

(Referred to in the section of this Order of which the marginal note is
"Rules as to taking the poll and repeal of section 19 of Act of 1892.")

ELECTION OF COMMISSIONERS FOR THE HARBOUR AND DOCKS
OF LEITH 19 .

RETURNING OFFICER'S LETTER.

No. (*number of elector as on the register*).

NAMES AND DESIGNATIONS OF PERSONS NOMINATED.

[8 EDW. 7.]

*Leith Harbour and Docks Order
Confirmation Act, 1908.*

[Ch. xxx.]

SIR (or SIRS),

A.D. 1908.
—

I have to intimate that the above-named persons have been nominated for the office of a Commissioner (or Commissioners) for the Harbour and Docks of Leith to be elected by shipowners (or ratepayers) Along with this letter you will receive a voting paper and should you desire to vote at this election I have to request that you (or your representative) will either vote personally at (*insert place*) in Leith between the hours of ten o'clock in the forenoon and four o'clock in the afternoon on (*insert date*) or that you will insert in the blanks of the voting paper the name (or names) of the person (or persons) for whom you vote and the place and date of signing and having signed in presence of one witness who will also sign his name as directed you (or he) will return the voting paper by post to me in the enclosed envelope so as to reach me on or before 10 a.m. of (*insert the day on which the poll finally closes*).

You are entitled to one vote for one candidate (or to votes namely one vote for each of any of the above-named candidates) and no voting paper containing the names of more candidates than you are entitled to vote for at this election will be counted.

(Signed) G. H. *Returning Officer.*

(*Place and date.*)

SCHEDULE C.

FORM OF BOND AND MORTGAGE.

(Referred to in the section of this Order of which the marginal note is "Form of mortgage for exercise of borrowing powers.")

Payable at specified terms.

We the Commissioners for the Harbour and Docks of Leith incorporated by the Leith Harbour and Docks Act 1875 and acting in virtue thereof and of the Leith Harbour and Docks Act 1892 the Edinburgh Corporation Stock Act 1894 the Leith Harbour and Docks Act 1899 and the Leith Harbour and Docks Order 1908 do hereby acknowledge to have by virtue of the powers contained in the said Acts and Order borrowed and received from (state name or names and designations &c. of lender) the principal sum of sterling which sum we bind ourselves and our successors to repay to the said or his (or their) heirs executors or assignees (or otherwise as the lender may desire) within the office of our collector at Leith at the term of (state term

A.D. 1908. and year) with a fifth part more of penalty in case of failure in punctual payment and interest of the said principal sum at the rate of pounds per centum per annum from the (state term or date and year) when the said sum was received till the same be repaid such interest being payable half-yearly at (state place of payment) at each term of Whitsunday and Martinmas after the date hereof till repayment of the said principal sum and that to the bearer of the warrants or coupons for the same which by our authority are signed by or on behalf of the clerk to the Commissioners and issued herewith and the redelivery of which shall discharge such interest so far as payable at the term specified in such warrants respectively And in security of the principal sum so borrowed and interest thereof we do hereby assign and convey to the said and his (or their) foresaids the undertaking of the Harbour and Docks of Leith and the rates by the aforesaid Acts and Order or any of them authorised to be levied and rents and feu-duties thereof and other revenues whatsoever to arise under the said Acts and Order or any of them and from the said harbour and docks and the works and property thereof and all the rights competent to mortgagees under the said Acts and Order or any of them and subject to the provisions thereof relating to the several moneys thereby authorised to be borrowed In witness whereof these presents are sealed with our corporate seal and signed at and in presence of a meeting of us the said Commissioners by three of us the said Commissioners present thereat all at Leith on the day of hundred and before the witnesses subscribing.

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